

Court No. - 21

Case :- WRIT - C No. - 7461 of 2023

Petitioner :- Amit Mohan

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vimal Kumar,Ravi Prakash

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Counsel for the respondent-Electricity Department prays for and is granted a week's time to obtain instructions.

List as fresh on 15.03.2023.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 3.3.2023

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The petitioner has challenged the recovery citation dated 20.01.2023 issued against him for recovery of electricity dues in a case of theft of electricity.

Sri Vinay Kumar Gautam, holding brief of Sri Baleshwar Chaturvedi, learned counsel for the respondent Electricity Department states that the impugned recovery has been withdrawn and that fresh order will be passed after providing opportunity of hearing to the petitioner.

Accordingly, the writ petition is **disposed of** with liberty to the respondent Electricity Department to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.3.2023

Shivangi